

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PARAGUAY

*Complete Community Opposition How-To*

## INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Paraguay. The clearest proof comes from the dry scrub of the Chaco, where the Enxet community of **Sawhoyamaxa** spent a generation fighting to return to land that had been fenced off and sold to ranchers while they were pushed to the roadside. Their claim had been pending in Paraguay's own institutions since 1991 and went nowhere. So they did something few communities anywhere manage: they took their State to an international court. In 2006 the **Inter-American Court of Human Rights** — whose judgments bind Paraguay — ruled that the State had violated the community's rights and **ordered it to return the ancestral land**. Even then, the government stalled for years, hiding behind the ranchers' private-property titles; so in 2013 the community **re-occupied part of their own territory** and kept pressing, until in 2014 Congress passed, and the President signed, **Law 5194 expropriating 14,400 hectares and restoring them to Sawhoyamaxa** — the first time the Paraguayan State had ruled for an Indigenous community in a land fight of this kind. A community with almost nothing beat ranchers, inertia, and their own government, because they found a lever that reached above the national system and never let go. The scale of the endurance is worth grasping. The 146 Enxet families of Sawhoyamaxa — more than 600 people — had lived beside a highway in makeshift shacks, within sight of land held as cattle estates, since a claim first lodged in 1991 went unanswered. The Inter-American Court's 2006 judgment found Paraguay had violated the rights to juridical personality, life, a fair trial, property, and judicial protection, and gave the State three years to return the land; the Senate instead rejected expropriation in 2009. Only after the community re-occupied its territory in 2013, and after relentless work by the human-rights organisation Tierraviva and international allies such as Amnesty International, did the Senate approve the expropriation of 14,400 hectares in April 2014 and the President sign Law 5194 that June.

Sawhoyamaxa teaches two things about winning in Paraguay. The first is the pattern: not a single silver bullet, but the combination of every lever — the constitutional guarantee of communal land, the domestic institutions and courts, the environmental and consultation rules, international human-rights law, community re-occupation, mobilisation, and national and international attention — pressed for as long as it takes, which here can be decades. The second is distinctly Paraguayan: because domestic remedies are so often slow, captured, or stacked toward the powerful, the **Inter-American human-rights system** — the Commission and the Court in Costa Rica — has become the single most powerful lever a Paraguayan community holds, having ordered the State again and again to return stolen land.

Most communities, though, do not know HOW to make opposition effective. They petition INDI once and wait. They assume the land or the licence "is already lost," and so they never file a proper claim, never demand consultation, never take a case to the Inter-American Commission, never seek precautionary measures, never build the mobilisation that changes a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

**This guide shows what actually works — inside the Paraguayan system, and above it.**

## The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

|                               |                                                                       |
|-------------------------------|-----------------------------------------------------------------------|
| STEP 1: TARGET IDENTIFICATION | (find the decision and its weak point)                                |
| STEP 2: DOCUMENTATION         | (build proof of harm and of every defect)                             |
| STEP 3: LOCAL OPPOSITION      | (organise a movement that lasts)                                      |
| STEP 4: LEGAL CHALLENGES      | (the land guarantee, the amparo, consulta, the Inter-American system) |
| STEP 5: MEDIA STRATEGY        | (make the fight visible and impossible to ignore)                     |

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a case is a headline and a headline strengthens a case. The community that runs all five together, each reinforcing the others, is the one that wins. Sawhoyamaxa did exactly this — it documented its ancestral occupation, organised a community that endured for over twenty years, worked with human-rights lawyers to reach the Inter-American Court, re-occupied its land, and kept the fight

in the national and international eye, all at once.

## The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Paraguay's give communities a distinctive set:

- **The Inter-American human-rights system.** After domestic remedies fail, a community can petition the **Inter-American Commission on Human Rights**, seek urgent **precautionary measures** to halt imminent harm, and have its case referred to the **Inter-American Court**, whose rulings **bind Paraguay** — the lever that ordered Sawhoyamaxa's land returned.
- **The constitutional communal-land guarantee.** The 1992 Constitution recognises Indigenous peoples' right to communal ownership of land of a size and quality sufficient for their way of life, and their right to participate in decisions affecting them.
- **Prior consultation.** Under **ILO Convention 169**, ratified by Paraguay, Indigenous peoples have a right to free, prior, and informed **consulta** before measures that affect them.
- **The amparo.** Paraguay's constitutional injunction can act quickly against an act or omission that unlawfully harms a right.
- **The environmental licence and EIA.** Projects that may harm the environment need a **licencia ambiental** from **MADES** based on an environmental impact study under Law 294/1993 — a permit that can be challenged.
- **A tradition of land struggle.** From Indigenous communities to the campesino movement, Paraguay has a deep, if dangerous, tradition of organised struggle for land.

## What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. Paraguay has one of the **most unequal land distributions on Earth**, and soy and cattle agribusiness wield enormous power; the State has repeatedly **hidden behind private-property titles** to avoid returning ancestral land. Even binding Inter-American judgments have taken **many years** to enforce — Sawhoyamaxa waited eight years after its 2006 ruling, and the related Yakye Axa and Xákmok Kásek communities waited longer still. Land and environmental defenders and campesino leaders face **criminalisation, eviction, and violence** — the 2012 Curuguaty killings and their aftermath are a grim warning. At Curuguaty, in June 2012, an operation to evict campesinos occupying disputed land ended with eleven campesinos and six police dead; the killings triggered the swift impeachment of President Lugo, and it was campesino leaders — not the powerful — who were then prosecuted, several convictions later overturned amid serious doubts about the case. The episode captured a recurring pattern: land conflict turning deadly, and the criminal law falling on the movement rather than on those who took the land. Any campaign in the Paraguayan countryside must build protection for its leaders in from the very first day. Chaco deforestation is among the fastest in the world. And Paraguay has **not ratified the Escazú Agreement**. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

## HOW THE SYSTEM WORKS

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You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

### The Levels of Decision

A Paraguayan development project runs through several tracks at once, and each is a place to intervene.

**The land and its title.** Much of the fight in Paraguay is over **land itself** — who holds title, and whether it overlaps Indigenous ancestral territory or campesino claims. For Indigenous land, claims run through **INDI (Instituto Paraguayo del Indígena)** under the Constitution and the Estatuto de las Comunidades Indígenas; for rural land reform, through **INDERT**. Title and possession are where many projects are won or lost.

**The environmental licence.** A project that may harm the environment needs a **licencia ambiental** from **MADES** (the environment ministry), based on an environmental impact study under **Law 294/1993**. This is the key permit for dams, mines, agribusiness clearing, and infrastructure.

**Consultation.** Where Indigenous peoples are affected, a **consulta previa** under ILO Convention 169 is required before the measure proceeds.

**The courts — domestic and Inter-American.** Domestic disputes run through the ordinary courts and the **amparo**, up to the **Corte Suprema de Justicia**. But the decisive forum, again and again, has been supranational: the **Inter-American Commission and Court of Human Rights**, whose rulings bind the State.

## The Journey of a Project

A typical project moves from a proposal, to the securing of **land** (title, purchase, or clearing), to the **environmental licence** at MADES, through any **consulta**, into the **domestic courts** if challenged, and — where those fail — to the **Inter-American system**, with community organising and possible **re-occupation** running throughout. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: filing or defending a land claim, objecting to the environmental licence, demanding consultation. The later doors — an **amparo**, a petition to the Inter-American Commission, a request for precautionary measures — are more demanding but real, and communities walk through them and win, as Sawhoyamaxa did. Find out exactly where your project stands on this path today; that tells you which door is open now.

## Follow the Money and the Title

Behind the project stand a proponent — often an agribusiness, a rancher, or an energy or infrastructure company — its financiers and buyers (including international soy and beef markets), and the officials who titled the land and licensed the project. Trace who owns and funds the proponent, who buys its output, and who granted the title and the licence. Two questions unlock most Paraguayan fights: **Is the land and the licence lawful — the title, the ancestral claim, the EIA, the consultation — and were the impacts honestly assessed?** and **Who benefits from pretending they were?** Because export markets matter so much, the buyers and financiers are often more reachable than the local officials. A Paraguayan soy or beef project is usually the near end of a long international supply chain — traders, shippers, food and feed companies, and the banks behind them, many with public commitments against deforestation and human-rights abuse. Mapping that chain shows pressure points far from the local land registry, where a project that looks untouchable in Asunción can be made a liability in Rotterdam or São Paulo.

## The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Corte Suprema** reviews legality; the **Inter-American Commission and Court** review the State's compliance with human-rights law and can bind it. The **Ministerio Público** prosecutes crimes, and the **Defensoría del Pueblo** (ombudsman) examines rights violations. **MADES** supervises environmental licences. And a network of respected human-rights organisations — **Tierraviva**, **CODEHUPY**, and others — together with international bodies like Amnesty International, both litigate and watch. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to INDI, MADES, the domestic courts, the Defensoría, the Inter-American Commission, the export buyers, and the press at once, and each front that opens makes the others harder to close. A Paraguayan campaign's power comes not from any single lever but from applying several at the same time — with the Inter-American system as the one that reaches highest when the rest are blocked.

## QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Paraguayan and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project affects **Indigenous ancestral land** (which engages the constitutional guarantee and the Inter-American system), whether **consulta** was owed and skipped, whether the **environmental licence has real defects**, whether **domestic remedies have been exhausted** so the Inter-American door opens, and whether the public, the buyers, and the financiers can be reached. Where Indigenous land and the Inter-American lever are engaged and the community endures, Paraguay's levers are real; where the paperwork is clean and agribusiness and the State are aligned, discount the figures and think in terms of delay, exposure, and long-haul pressure.

### Individual Step Success Rates

| Approach                      | Success Rate | Timeline   | Cost | What "Success" Means               |
|-------------------------------|--------------|------------|------|------------------------------------|
| Documentation only            | 5-10%        | 1-3 months | low  | Basis for every other step         |
| Land claim / defence via INDI | 20-45%       | years      | low- | Title recognised or claim advanced |

|                                                                |                   |                  |                |                                                         |
|----------------------------------------------------------------|-------------------|------------------|----------------|---------------------------------------------------------|
|                                                                |                   |                  | moderate       |                                                         |
| <b>Objection to the environmental licence (MADES)</b>          | 15-35%            | during licensing | low            | On record; conditions; grounds                          |
| <b>Consulta previa claim (ILO 169)</b>                         | 25-50%            | 1-4 years        | low-moderate   | Measure halted for lack of consultation                 |
| <b>Amparo (domestic)</b>                                       | 20-45%            | months-years     | low-moderate   | Act suspended or struck                                 |
| <b>Inter-American precautionary measures</b>                   | 30-55%            | weeks-months     | low-moderate   | Urgent harm halted; State put on notice                 |
| <b>Inter-American Commission petition</b>                      | 30-55%            | years            | low-moderate   | Findings; referral; pressure to comply                  |
| <b>Inter-American Court judgment</b>                           | high once reached | years            | low-moderate   | Binding order (land return, reparation)                 |
| <b>Community re-occupation (recuperación)</b>                  | 25-50%            | ongoing          | low, high risk | Facts on the ground; leverage — but legal/physical risk |
| <b>Media &amp; public campaign</b>                             | 30-55%            | ongoing          | low            | Political cost raised; decision shifts                  |
| <b>International / buyer / financier pressure</b>              | 25-50%            | 6-48 months      | low            | Soy/beef buyers or funders walk away                    |
| <b>All steps combined (Indigenous land, Inter-American)</b>    | 45-65%            | 3-10 years       | low-moderate   | Land returned, licence blocked, project stopped         |
| <b>All steps combined (clean licence, agribusiness-backed)</b> | 20-40%            | 3-10 years       | low-moderate   | Delayed, exposed, conditioned; sometimes stopped        |

**Key insight:** every step together beats any single one, and Paraguay's real strengths are distinctive — the **Inter-American system** (precautionary measures, Commission, and a binding Court), the **constitutional communal-land guarantee**, **consulta previa**, the **amparo**, the **environmental licence** challenge, and a **deep land-struggle tradition**. Its constraints are **extreme land inequality and agribusiness power**, the State's habit of **hiding behind private titles**, the **painfully slow enforcement** of even binding rulings, and **grave danger to defenders**.

*A note on cost: documenting, filing a land claim or a licence objection, and demanding consultation are inexpensive, and Paraguay's human-rights organisations — Tierraviva, CODEHUPY, and others, often with international support — carry Inter-American cases for communities, which is what puts that powerful lever within reach of people with almost no money. The expenditure that most changes outcomes is committed legal and organising support — to sustain a claim and an Inter-American case over years — and the reach of the media and the buyer pressure, exactly what Sawhoyamaxa's allies marshalled.*

## Effectiveness Visualization

SUCCESS PROBABILITY (land returned, blocked, conditioned, delayed, or stopped)

INDIGENOUS LAND + INTER-AMERICAN LEVER -- ancestral claim, domestic remedies exhausted, community organised:

All steps combined: 45-65%  
 Inter-American Court (once reached): high, but slow to enforce  
 Precautionary measures / Commission: 30-55%  
 Consulta previa / amparo: 20-50%  
 Single step: 5-55%

CLEAN LICENCE, AGRIBUSINESS-BACKED -- soy/cattle frontier, State aligned:

All steps combined: 20-40%  
 Mobilisation + media + buyer pressure: the strongest combination  
 Delay / exposure: more achievable than an outright stop  
 Single step: 5-45%

**How to read this honestly.** The levers that most change outcomes in Paraguay are **the Inter-American system, the constitutional land guarantee, and consulta** where Indigenous land is engaged, and **the mobilisation, the media, and buyer pressure** everywhere. Sawhoyamaxa shows the ceiling: an ancestral claim, a binding international judgment, community re-occupation, and years of pressure won the land back. The floor is set by land inequality, agribusiness power, and a State that stalls even on binding rulings. Most Paraguayan fights sit between them, and the honest lesson is that the Inter-American system, the land guarantee, and endurance are real and distinctive levers — but the timelines are long, and the realistic win is often delay, exposure, conditions, and a proponent worn down, as much as a fast, outright stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents its claim, exhausts domestic remedies, takes the case to the Inter-American system, reaches

the buyers, and publicises at once consistently outperforms the one that waits on a single institution.

## Step Importance Ranking (When All Combined)

1. **The Inter-American human-rights system** — Paraguay's decisive lever; precautionary measures for urgent harm, and a Commission and binding Court that have ordered ancestral land returned.
2. **The constitutional communal-land guarantee and the land claim** — the domestic right the Court's rulings enforce, pursued through INDI and Congress.
3. **Consulta previa and the amparo** — the ILO 169 consultation right and the fast domestic injunction.
4. **The mobilised, enduring community** — the Sawhoyamaxa tradition of organising and, where chosen, re-occupation, sustained over decades.
5. **Media and buyer pressure** — the coverage and the reach to soy and beef markets that raise the cost of proceeding.

## What Paraguayan Campaigns Actually Show

A few patterns recur. **The Inter-American Court can order land returned** — Sawhoyamaxa, Yakye Axa, and Xákmok Kásek all won binding rulings. **Precautionary measures can halt urgent harm** — a fast international brake. **Community re-occupation creates facts and leverage** — Sawhoyamaxa re-took its land to force the issue. **Consulta matters** — its absence is a ground. **Buyer pressure bites** — export markets are sensitive. **But enforcement is agonisingly slow**, the State hides behind private titles, land inequality is extreme, and defenders face real danger. The through-line: **file and defend the land claim; demand consulta; object to the licence; exhaust domestic remedies and take the case to the Inter-American Commission, seeking precautionary measures; mobilise the public and the buyers; endure — and expect a long fight measured in delay, exposure, and hard-won rulings as much as a fast stop.**

## STEP 1: TARGET IDENTIFICATION

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Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the soy farm" goes nowhere; opposition to "the environmental licence and clearing permit granted over recognised Enxet ancestral land, without the consulta ILO 169 requires, on a title the community's claim predates" is a case. Answer five questions.

### The Five Core Questions

**1. What exactly is proposed, and on whose land?** Name the project, the proponent, and — first — **whose land** it sits on. Does it overlap **Indigenous ancestral territory** (engaging the constitutional guarantee, INDI, and the Inter-American system) or a **campesino claim**? Then the specific instruments: the land title, the environmental licence, the clearing permit. Each is a place a defect hides.

**2. What stage is it at?** A land claim pending? An environmental licence sought at MADES? Clearing under way? In the domestic courts? Domestic remedies exhausted? The stage dictates the door. If a licence is being sought, objecting is the route now; if domestic avenues are blocked, the Inter-American Commission — and precautionary measures for urgent harm — may be the route.

**3. Does it affect Indigenous ancestral land — and was there consulta?** This is often the decisive Paraguayan question. Does the project affect the ancestral territory of an Indigenous community? If so, the **constitutional communal-land guarantee**, the **consulta** right, and — crucially — the **Inter-American system** are the strongest levers there are, as Sawhoyamaxa proved. This lever belongs to the affected people; your role is to support their leadership. In practice that means offering capacity — research, documentation, logistics, a legal contact — rather than direction, and accepting that the community will pursue its claim on its own terms and at its own pace; the land and the case are theirs, and a campaign that forgets it both wrongs the people it serves and weakens the ancestral-occupation evidence on which the whole case rests.

**4. Are domestic remedies exhausted — and is urgent harm imminent?** The Inter-American Commission generally requires that you first try (or show you cannot use) domestic remedies; establish where you stand. And if harm is imminent — clearing, eviction, a threat to survival — that is the basis for urgent **precautionary measures**.

**5. Who decides, who benefits, and who is watching?** Which officials titled the land and licensed the project; who owns, funds, and buys from the proponent (including export markets); which communities and organisations are engaged; and which human-rights organisations, lawyers, press, and international allies can be reached. This maps your levers and

your audiences at once.

## A Worked Example

Suppose an agribusiness clears and fences land that overlaps an Indigenous community's ancestral territory, holding a title and an environmental licence, with the community's land claim stalled at INDI.

Working the five questions: the project sits on **ancestral land** with a **stalled claim** — so the constitutional guarantee, INDI, and the Inter-American system are all in play. It has a **title and licence**, so objecting to the licence and challenging the clearing are live now, with the amparo and the Inter-American route in reserve. The **Indigenous territory** engages **consulta** and the **Inter-American system**. If **domestic remedies are stalled or exhausted** and clearing threatens the community's survival, **precautionary measures** may halt it fast. Because the land and the courts have failed the community, the **Inter-American lever and the buyers** carry more weight than local officials.

Within a weekend you have moved from "we oppose the clearing" to a target list: file and press the land claim at INDI and document the ancestral occupation; object to the environmental licence and demand consulta; prepare an amparo against unlawful clearing; assess domestic-remedy exhaustion and, with human-rights lawyers, prepare an Inter-American petition and a request for precautionary measures; identify the soy or beef buyers and financiers; and prepare the land-and-survival story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — press the claim, object to the licence, ready the amparo, prepare the Inter-American petition, map the buyers — each tied to a specific lever and each of which can begin this week, several of them long before any court rules. That is the difference the five questions make.

## STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

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Documentation is the foundation everything else stands on. A domestic judge, an Inter-American commissioner, a journalist, and a project's buyers all move on evidence, not indignation. Build your file in three layers.

### Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **land titles and the INDI claim file**; the **environmental licence and the impact study** from MADES; any **consulta record**; and the survey and cadastral records showing the overlap between the project and the ancestral or claimed land. Much of this is obtainable from the institutions and through public-information requests. The gap between what the paper claims — a clean title, an adequate study, a genuine consulta — and the community's documented ancestral occupation is where cases are won. Sawhoyamaxa's victory rested exactly here: the proof, built over years with its lawyers, that the land was ancestral Enxet territory the community had never truly relinquished. Read the environmental study against the grain, for the forest loss scoped out in a sentence, the water demand softened, the affected community undercounted or ignored; it is written to secure the licence, and its silences are your grounds. And read the chain of title with equal care — how the land passed from public domain into private hands, and whether that history rode over an Indigenous occupation the Constitution protects.

### Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual land** — the ancestral sites, the water sources, the forest, the community, the clearing, the fences — and geotag it. Log **incidents**: forest cutting, an eviction, a blocked water source, a threat. Capture **before-and-after** with your own photos and with freely available satellite imagery, which is especially powerful in Paraguay for documenting the rapid clearing of Chaco and Atlantic forest. Record **the community's occupation and use** — where the community chooses to share it, its history on the land, its sacred sites, its livelihood — because ancestral occupation is the heart of the Indigenous-land case. Record **testimony**: elders' accounts of the community's presence on the land, and residents' and independent experts' accounts of the harm.

### Layer 3: The Defects and the Rights

Finally, document the failures of process and the legal lines the project crosses. Does it occupy **Indigenous ancestral land** protected by the Constitution, over a stalled or ignored claim? Was **consulta** skipped? Is the **title itself questionable**, or does it postdate the community's claim? Was the **environmental licence granted on a deficient study**, or the **clearing unlawful** (for example under the Zero Deforestation Law in the Eastern region)? Does the project threaten the community's **survival, water, and way of life** — the rights the Inter-American Court has protected? Each



defect is a separate ground — for a land claim, an amparo, a consulta claim, a licence challenge, and an Inter-American petition — and together they make a case that is hard to wave away. This is the layer that most often decides Paraguayan fights, because here a project that looked lawful is revealed to sit on stolen ancestral land, to have skipped consultation, or to rest on a questionable title and a whitewashed study. Work it methodically against each requirement: does the project occupy ancestral land the Constitution guarantees; was consulta owed and genuinely held; is the title lawful and does it postdate the claim; did the study honestly assess the forest, the water, and the community; does the project threaten the community's survival and way of life? Where the answer is no, capture the proof — because each 'no' is a separate ground the domestic courts, or the Inter-American system, can act on, and the survival and ancestral-land grounds are the ones the Court has protected most strongly.

## WHAT TO GATHER, AND WHERE TO FIND IT

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This is the practical companion to Step 2: the specific records that decide Paraguayan cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

### The Land, the Licence, and Their Paper Trail

- **The land titles and cadastral records**, and the **INDI claim file** for any Indigenous territory — the history of the claim, the surveys, the overlap with the project. A claim pending for years, ignored, is itself powerful evidence.
- **The environmental licence and the impact study (EIA)**, from MADES. Read the study for what it understates — the forest cleared, the water, the affected communities, the cumulative effect of a whole soy or cattle frontier.
- **The clearing and land-use permits**, and whether they comply with the Zero Deforestation Law (in the Eastern region) and other rules.
- **Any consulta record** — whether a consulta previa happened, how, and whether the community accepts it as genuine.
- **The chain of title** — how the land passed to its current holder, and whether that history is lawful and postdates the community's occupation.

### How to Get Them

Land and claim records are held by **INDI**, the land registry, and **INDERT** for rural land; environmental documents by **MADES**. Use public-information requests to obtain what is not volunteered; a refusal is itself a documentable fact. And use your allies: Paraguay's human-rights organisations have long experience prying loose and assembling exactly these records for Inter-American cases, and can help a community that could never gather them alone. Move early, because objections entered while a licence is being decided, and evidence gathered before land is cleared, carry far more weight than the same point raised after the damage is done — and because the **exhaustion of domestic remedies**, which the Inter-American route generally requires, is a record you must start building now. Every claim filed, every objection lodged, every court that delays or refuses, and every request that goes unanswered becomes part of the proof that the domestic system has failed the community — which is precisely what opens the Inter-American door. So treat even the steps that seem to lead nowhere as evidence: date them, keep proof of them, and file them in the timeline, because a stalled remedy carefully documented is not wasted effort but the foundation of the case that finally succeeds.

### The Ground Evidence

- **Dated, geotagged photographs and video** of the land, the ancestral sites, the water, the forest, the clearing, the community.
- **Satellite before-and-after** from freely available imagery — decisive in Paraguay for showing the speed and scale of forest clearing.
- **The community's occupation and history** — where the community chooses to share it, its sacred and burial sites, its traditional use of the land and water, mapped against the project footprint and the title.
- **Independent technical readings** — a forester's, hydrologist's, or anthropologist's report, and an independent review of the environmental study. Human-rights and environmental organisations and university partners can help source these.
- **Maps** overlaying the footprint on the ancestral or claimed territory, the forest, and the water sources — a single map showing a soy field or a fence over an ancestral community's land is worth pages of argument.
- **Testimony** — above all elders' accounts of the community's ancestral presence, since that is the heart of the land case, and residents' and experts' accounts of the harm.

### Organise It So It Persuades

Keep a **master timeline** of the land claim, the licence, the consulta, the clearing, the domestic remedies pursued, and every incident and deadline — the spine of any domestic case and, crucially, of an Inter-American petition, which turns on the history of the claim and the exhaustion of remedies. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge — domestic or international — all see the same clear picture fast, and it guards against the campaign's worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for decades — Sawhoyamaya's did — the community with the better-kept file is very often the one that prevails.

## STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A MOVEMENT THAT LASTS

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Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the years, sometimes decades, a fight takes. This is the step Sawhoyamaya did best: a community that stayed organised and hopeful through more than twenty years, and never let go of its claim.

### Phase 1: The Core, and the Leadership of the Affected People

Start with a small, committed core — five to fifteen people who will carry the work. Where the project affects an Indigenous community, the single most important early step is to **respect and support that community's own leadership and organisation**: the constitutional land right, the consulta right, and the Inter-American case are theirs, and the strongest campaigns support that leadership rather than substituting for it. Follow the community's lead, and never presume to speak on its behalf. Assign roles: documentation, legal liaison (domestic and Inter-American), land-claim organising, media, community liaison, and coordination. Agree on the goal — the land returned or defended, a licence blocked, an Inter-American ruling, a clearing stopped — and on what you will and will not accept.

### Phase 2: The Coalition

Then widen deliberately. Bring in **neighbouring Indigenous and campesino communities, the campesino federations, faith networks (the Catholic Church has a strong presence in Paraguay's land struggles), students, and scientists**. Reach the **allies with capacity** — the human-rights organisations that carry Inter-American cases (**Tierraviva**, CODEHUPY, and others), the international bodies (Amnesty International monitored Sawhoyamaya) whose reach amplifies a local fight, independent experts, and the buyer- and financier-facing campaigners who can reach the soy and beef markets. Sawhoyamaya drew its power from exactly this breadth — an enduring community joined to skilled human-rights lawyers and international allies — which is precisely the spread a winning campaign needs.

**A worked coalition example.** Facing agribusiness clearing of ancestral land, the affected community leads; neighbouring communities and campesino organisations stand with it; a human-rights organisation carries the Inter-American case and seeks precautionary measures; an anthropologist documents the ancestral occupation; and international allies and buyer-facing campaigners raise the profile. No single group could have carried it; together they cover the land claim, the domestic and international law, the science, the Indigenous legitimacy, and the national and international reach — the Sawhoyamaya model.

### Phase 3: Sustaining It

Campaigns die of burnout, not defeat — and in Paraguay they must often outlast a State that stalls for years even on binding rulings. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a claim advanced, precautionary measures granted, a document pried loose, a buyer questioned. Rotate the exhausting roles. And protect people — this is grave in Paraguay, where land and environmental defenders and campesino leaders face criminalisation, eviction, and violence: keep leadership collective and visible; document every threat; build strong links to human-rights organisations, the Defensoría del Pueblo, the press, and international networks that raise the cost of harming a known leader; and get security and legal advice. Sustaining a campaign — as Sawhoyamaya's two decades show — is how these fights are won, and the ones that endure pace themselves. Build in the things that keep people together through a fight that may outlast a government or two: welcome newcomers, share food, mark the small victories, root the campaign in the community's own life and leadership, and never let a leader stand alone and exposed. In Paraguay a land fight can run longer than a decade, and the movements that last that long are the ones whose members carry the claim as part of who they are.



## Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings, meetings, and public actions. Undertake, where the community chooses it and with clear eyes about the risk, powerful assertions of right — the **re-occupation (recuperación)** of ancestral land that Sawhoyamaxa used to force the issue, a tactic that creates facts and leverage but carries real legal and physical danger and must be led by the affected community with legal advice. Hold peaceful, well-documented actions that make the fight a national and international story. The point is not spectacle; it is to demonstrate, to the authorities, the courts, the Inter-American bodies, the buyers, and the public, that the community is rooted, organised, and not going away — and that its claim will not quietly lapse.

## STEP 4: LEGAL CHALLENGES — THE LAND GUARANTEE, CONSULTA, AND THE INTER-AMERICAN SYSTEM

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Paraguayan law, and the international law above it, give communities a real arsenal, and you do not need a final ruling to win with it: a land claim, an objection, an amparo, or a request for precautionary measures delays a project, forces disclosure, and creates leverage and headlines. The distinctive move here is that when the domestic system fails, the fight goes above it, to the Inter-American system.

### The Land Claim and the Constitutional Guarantee

The first lever is the **constitutional guarantee of communal land**. The 1992 Constitution recognises Indigenous peoples' right to communal ownership of ancestral land of a size and quality sufficient for their way of life, and the Estatuto de las Comunidades Indígenas and **INDI** provide the machinery to claim and title it. Filing, defending, and pressing that claim — documenting the ancestral occupation — is the foundation of an Indigenous-land fight, and, where the land is held by a private owner, it can lead to **expropriation by Congress**, the very mechanism that finally returned Sawhoyamaxa's 14,400 hectares. For campesino land, **INDERT** and the agrarian-reform framework provide a parallel route. The Indigenous guarantee is set out in Articles 62 to 67 of the 1992 Constitution, which recognise Indigenous peoples as predating the formation of the State, guarantee their communal ownership of land sufficient for their way of life — to be provided free of charge and protected from seizure, division, or transfer — and affirm their right to take part in the decisions that affect them. The Estatuto de las Comunidades Indígenas (Law 904 of 1981) supplies the machinery. On paper it is one of the stronger Indigenous-land guarantees in the region; the fight is almost always about forcing the State to honour it.

### Consulta Previa and the Amparo

Two domestic levers reinforce the claim. Under **ILO Convention 169**, ratified by Paraguay, Indigenous peoples have a right to **free, prior, and informed consulta** before a measure that affects them, and its absence is a ground to challenge the measure. Paraguay ratified ILO Convention 169 in 1993, so the consultation duty is part of its law, and it applies not only to land transfers but to environmental licences, clearing, and infrastructure that would affect an Indigenous community; a licence granted without it is vulnerable, and the demand for a genuine consulta — on the community's terms, in good faith, and before the decision — is both a legal ground and a way to slow a project while the community organises. And the **amparo** — Paraguay's constitutional injunction — can act quickly against an unlawful act or omission that harms a right, such as illegal clearing, an eviction, or a licence granted in breach of the law. The amparo is fast and cheap relative to ordinary litigation, and a well-aimed one can freeze harm while the larger fight proceeds.

### The Inter-American System — the Lever Above the State

The decisive Paraguayan lever, again and again, has been the **Inter-American human-rights system**. When domestic remedies fail — as they so often do against powerful landholders — a community, usually through a human-rights organisation, can petition the **Inter-American Commission on Human Rights**. Three things make this powerful. First, in urgent cases — imminent clearing, eviction, or a threat to a community's survival — the Commission can grant **precautionary measures (medidas cautelares)** calling on the State to halt the harm, a fast international brake. Second, the Commission investigates and can issue findings and recommendations, and refer the case to the **Inter-American Court of Human Rights**. Third, the Court's judgments **bind Paraguay**, which has accepted its jurisdiction — and the Court has repeatedly **ordered the State to return ancestral land**, in Yakye Axa, Sawhoyamaxa, and Xákmok Kásek. Those three cases form a landmark trilogy: Yakye Axa in 2005, Sawhoyamaxa in 2006, and Xákmok Kásek in 2010, each an Enxet, Sanapaná, or related Chaco community, and each a binding order that Paraguay restore ancestral land and, meanwhile, keep the community alive with food, water, health care, and schooling. Together they built a body of

Inter-American law that any Paraguayan Indigenous community can now stand on — the Court has effectively told the State, repeatedly, that private title does not extinguish an ancestral right. This is a lever that reaches entirely above the national politics and the local courts that so often fail Indigenous communities. Its cost is time — the process takes years, and even a binding ruling can be slow to enforce — so it is run alongside, not instead of, the domestic and public fronts. The path runs in stages: a petition to the Commission, an admissibility decision (which turns heavily on whether domestic remedies were exhausted or shown to be futile), a merits report with recommendations, and — if the State does not comply — referral to the Court for a binding judgment, after which the Court itself monitors compliance and keeps the case open until the State performs. Each stage is a pressure point and a headline, and the compliance-monitoring phase in particular is a standing reminder to the State, year after year, that the world is watching whether it obeys.

## The Environmental Licence and the Buyers

Two further levers complete the arsenal. The **environmental licence** from MADES rests on an impact study under Law 294/1993, and a deficient study, or clearing in breach of the Zero Deforestation Law, can be challenged and reported. Paraguay's Zero Deforestation Law (Law 2524 of 2004) prohibits the conversion of native forest in the Eastern region — the Atlantic Forest, once nearly all cleared — and has slowed loss there; but it does not protect the Chaco, where clearing for cattle is among the fastest anywhere on Earth, which is why satellite documentation and buyer pressure matter so much in the west. Knowing exactly which rules bind your project's region is essential: an illegal clearing in the East is a straightforward violation, while in the Chaco the fight leans harder on the licence, the ancestral claim, and the markets. And because Paraguay's agribusiness depends on **export markets**, pressure on the **soy and beef buyers and the financiers** — showing that a project rests on stolen ancestral land, a skipped consulta, or illegal clearing — can reach a proponent where the domestic process cannot.

## Where to File and With Whom

Land claims go to **INDI** (or **INDERT**); licence objections to **MADES**; amparos and consulta claims to the domestic courts; and, above all, Inter-American petitions and precautionary-measures requests to the **Inter-American Commission**, generally after domestic remedies are tried or shown to be futile. Get help early: Paraguay's human-rights organisations and specialist lawyers know exactly these procedures — domestic and Inter-American — and can advise on the strongest ground, the exhaustion requirement, the urgency case for precautionary measures, and how a non-Indigenous group can properly support a community's claim. A community that connects with skilled human-rights counsel early, and starts building the record of its claim and of exhausted remedies, is far better placed than one that seeks help only when the bulldozers arrive.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

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You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a domestic judge, an Inter-American commissioner, an environmental official, a journalist, a soy buyer, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

### One Fact, Many Arguments

Take a single documented fact — say, that an agribusiness is clearing ancestral land over a community's claim that has sat unresolved at INDI since the 1990s, without any consulta. That one fact becomes:

- **A constitutional/land argument:** the project occupies Indigenous ancestral land the Constitution protects, over a claim the State has failed to resolve — grounds for the claim, and for expropriation.
- **A consulta argument:** the community's right to free, prior, and informed consultation was denied — a ground to challenge the measure.
- **An Inter-American argument:** the State's decades-long failure to resolve the claim and protect the community violates the American Convention — the case the Court has repeatedly upheld, and, where survival is threatened, the basis for precautionary measures.
- **A media argument:** a community pushed off ancestral land while its claim gathers dust, as ranchers and soy move in — a clear, human story with deep roots.
- **A buyer argument:** soy or beef produced on stolen, contested ancestral land is a legal and reputational risk to the buyers and financiers down the supply chain.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Paraguay the argument that most often decides things is the **Inter-American one**, because it reaches above the domestic system, and the **land-and-survival story**, because it

moves the public and the buyers. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the Commission's file and a claim made to the Court can be spoken plainly at a community assembly; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the American Convention for the Court, the ancestral occupation for the community and the public, the supply-chain risk for the buyer, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

## Match the Argument to the Audience

**The domestic courts and the Inter-American bodies** want the case framed precisely against the specific rule — the constitutional guarantee, ILO 169, the American Convention, the environmental law — with the documents, the timeline, and the record of exhausted domestic remedies that prove it, and, on Indigenous rights, led by the affected people.

**INDI, MADES, and officials** respond to legal duty and risk — the pending claim, the deficient study, the consulta owed, the exposure to an Inter-American finding.

**Journalists** need a specific, verified, human story with a hook: a named community, an ancestral land, a documented clearing or eviction, a stalled claim, a live threat.

**Soy and beef buyers and financiers** respond to legal and reputational exposure — a supply chain tainted by stolen ancestral land, illegal clearing, and a pending international case.

**The community itself** needs to see that the fight is winnable and shared — the small wins, the movement holding, the international case advancing — so it lasts through the long years these fights take.

## STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

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Media is not vanity; it is a lever. Coverage raises the political cost of a project, reaches officials and legislators (whose vote can expropriate land), reaches the buyers your letters cannot, protects activists by making them visible — which matters intensely in Paraguay — and can turn a local fight into a national and international cause. Sawhoyamaxa proved it: the enduring image of an Enxet community living in roadside shacks within sight of the ancestral land they were owed, and the international attention its case drew, kept the pressure on until Congress acted.

### Build the Story

Reporters need specifics: a named place and people, a dated and documented harm, a clear stake, and a live decision or deadline. "Agribusiness threatens Indigenous people" is not a story; "an Enxet community has waited since 1991 for land the Inter-American Court ordered returned, while ranchers clear and fence it and the community lives by the roadside" is. Lead with your strongest verified fact, attach the map and the satellite imagery of clearing, and offer a human voice — a community leader where the people choose to speak, an elder, a lawyer — and a striking image, as Sawhoyamaxa's roadside camp became.

### Reach the Right Outlets

Work outward in rings. **Local and regional media** first, where the project is felt. Then **national outlets** — Asunción's papers and Paraguay's investigative and independent press — which carry political weight and reach legislators. Then, because the fight turns so often on international law and export markets, **international and financial media**, which reach the Inter-American bodies' audience, the soy and beef buyers, and the world; a case before the Inter-American Court draws exactly this attention. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the rings that reach the **legislators and the buyers**, because a congressional expropriation and a nervous buyer are two of the most decisive outcomes available. It is worth identifying the specific reporters at the Asunción papers who cover land and Indigenous affairs, and the international correspondents and supply-chain investigators who track deforestation and soy and beef; a journalist who already knows the terrain needs less briefing and carries more weight, and a single well-sourced investigation into land cleared over an ancestral claim can move a legislator or a buyer more than a month of releases. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

### Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions — and in Paraguay the drumbeat must sometimes sound for years. Plan a sequence — the claim, the precautionary measures, the Commission's steps, the Court ruling, the clearing, the action — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and satellite images) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. Follow the affected community's lead on how its story and knowledge are told. And weigh safety in every choice, coordinating with human-rights organisations on how and when to raise a leader's profile. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

## EMAILS & LETTERS

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Written communications are how you claim, object, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

### 8A. Land Claim / Submission to INDI

**To:** INDI (Instituto Paraguayo del Indígena) **Subject:** Reclamo territorial — comunidad [name], pueblo [Enxet/...]

On behalf of / in support of the Indigenous community of [name], we present/renew the claim to its ancestral territory at [location], recognised under the Constitution and the Estatuto de las Comunidades Indígenas. We attach evidence of ancestral occupation: [maps, elders' testimony, historical and anthropological records, sacred sites]. We request that INDI advance the claim, survey the territory, and, where it is privately held, pursue its recovery, including by **expropriation** where necessary. We ask to be informed of every step and to be heard at each stage.

### 8B. Objection to the Environmental Licence (MADES)

**To:** MADES (Ministerio del Ambiente y Desarrollo Sostenible) **Subject:** Observaciones — licencia ambiental, [project], [location]

As a community/person affected by [project], we object to [the grant of / the application for] its environmental licence. Our grounds, with evidence: (1) the impact study [understates/omits] [the forest cleared, the water, the affected Indigenous community]; (2) [the project affects Indigenous ancestral land and requires consulta previa, which has not occurred]; (3) [the clearing breaches the Zero Deforestation Law / the licence conditions]. We request that the licence be **refused or suspended**, and that our objection be formally answered. [Attachments: maps, satellite imagery, technical note.]

### 8C. Request for Public Information

**To:** [INDI / MADES / the land registry / INDERT] **Subject:** Solicitud de información pública — [project / community]

Under the right of access to public information, we request: the land titles and cadastral records for [area]; the INDI claim file for [community]; the environmental licence and impact study for [project]; the clearing and land-use permits; and any consulta record. Please respond within the legal period. We note the public interest in land, environmental, and Indigenous-rights information.

### 8D. Petition / Precautionary-Measures Request to the Inter-American Commission

**To:** the Inter-American Commission on Human Rights (via human-rights counsel) **Subject:** Petition and request for precautionary measures — [community] v. Paraguay

On behalf of [community], we submit that Paraguay has violated the American Convention by [failing for [years] to resolve the community's ancestral-land claim / permitting clearing and eviction that threaten the community's survival / denying consulta]. We attach the record of the claim and of exhausted or futile domestic remedies. Given the imminent and irreparable harm of [clearing / eviction / threat to survival], we request **precautionary measures** calling on the State to halt it, and we ask the Commission to process the petition on the merits.

### 8E. Letter to a Buyer / Financier (soy, beef, or lender)

**To:** [the buyer / trader / financier] **Subject:** [Project/supplier] — legal and reputational risk

We write regarding your [purchasing from / financing of] [company] in connection with [project] at [location]. The land [one-line stake — e.g. "is ancestral Indigenous territory subject to a claim the State has failed to resolve and a case before the Inter-American system, and is being cleared without consultation"], and our documented concerns include [the stolen ancestral land, the illegal clearing, the pending international case]. We ask you to weigh the legal, reputational, and supply-chain risk, and whether your own [deforestation, human-rights, and sourcing commitments] are consistent with this. We are glad to share our evidence.

## 8F. Letter to a Legislator (toward expropriation)

**To:** [a Senator / Deputy] **Subject:** [Community] — restoring ancestral land through expropriation

We write about the Indigenous community of [name], whose ancestral-land claim at [location] has been pending since [year] and which [the Inter-American Court has ordered returned / faces imminent loss]. As Congress did for the Sawhoyamaya community through Law 5194/2014, we ask you to support the **expropriation** of the disputed land and its restitution to the community, in fulfilment of the Constitution and Paraguay's binding international obligations. [If true:] [#] organisations support this. We welcome a meeting and can share our full evidence.

## 8G. Email to a Reporter (National or International)

**To:** [journalist] **Subject:** Story tip: [specific finding] — [the community / the land]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents and satellite images] show [quantified finding — e.g. "an Enxet community has waited since 1991 for land the Inter-American Court ordered returned, while it is cleared and fenced and the community lives by the roadside"], with [a decision/hearing] due [date]. It is specific, verified, and it echoes Sawhoyamaya. I can share the full file and — where the community wishes to speak — connect you with community leaders and a lawyer. Could we talk this week?

## 8H. Letter Requesting Protection for Defenders

**To:** [the Defensoría del Pueblo / the Ministerio Público], copied to allies **Subject:** Protection request — defenders of [community] opposing [project]

We report that leaders and members of [community/organisation] opposing [project] face [threats / criminalisation / eviction / violence]: [sourced facts, dates]. Given Paraguay's documented dangers for land and Indigenous defenders, we request [protective measures / investigation / monitoring], and we are informing human-rights organisations, the Inter-American Commission, and the press. We attach the record of incidents.

## Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — the record of steps taken and remedies exhausted is itself essential to the Inter-American case. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and maps; and route them, where you can, through or with the affected community (following its lead), your human-rights lawyers, and your international and buyer-facing allies. The reply — or the silence — becomes part of your record, and in Paraguay that record feeds the levers that matter most: the land claim, consulta, the amparo, and above all the Inter-American system, alongside the buyers and the public — with the protection of your people woven through all of it.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

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Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

**1. File or renew the land claim — and connect with human-rights counsel.** On ancestral land, the claim at INDI is the foundation, and Paraguay's human-rights organisations can carry it — and, crucially, an Inter-American case — for a community with almost no money. Reaching them is the highest-leverage first move.

**2. If harm is imminent, seek precautionary measures.** Where clearing, eviction, or a threat to survival is imminent

and domestic avenues are failing, a request to the **Inter-American Commission** for **precautionary measures** (8D) can be a fast international brake — pursue it with counsel.

**3. Object to the environmental licence and demand consulta.** One evidenced objection to MADES (8B) and a demand for consultation put your case on the record and create grounds — but the window is limited, so act while it is open.

**4. Get the documents.** The titles, the claim file, the licence, and the study are obtainable through public-information requests (8C). The gap between the paper and the reality is usually the case.

**5. Capture the clearing from space.** Free satellite imagery is decisive in Paraguay; a dated before-and-after of forest loss is evidence a court, a buyer, and a reporter all understand.

**6. Reach the buyers.** Soy and beef markets are sensitive; a letter to a buyer or financier (8E) can reach a proponent the domestic system cannot.

**7. Tell the story and protect your people.** An ancestral community and a stalled claim is a powerful story (8G); and build protection for exposed leaders in from the start (8H).

Do only the first three and you will have anchored the land claim, opened the Inter-American door, and — if needed — sought an urgent brake, the exact foundation a longer fight is built on. Then come back and read the rest. Even the shortest version has a spine: file the claim and reach counsel, seek precautionary measures if harm is imminent, object to the licence. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — it has anchored a claim that will not lapse, begun the record the Inter-American case needs, and, where harm is imminent, reached for the one brake that can act fast.

## WHEN THE SYSTEM IS TILTED

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Paraguay's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

### Where the Tilt Shows

The tilt is structural. Paraguay has one of the **most unequal land distributions in the world** — a small elite and powerful **soy and cattle agribusiness** hold vast estates, and their influence runs deep through politics and the local courts. The State has repeatedly **hidden behind private-property titles** to avoid returning ancestral land, telling communities to accept "alternative" land instead of their own. Even when a community wins a **binding Inter-American judgment, enforcement is agonisingly slow** — Sawhoyamaxa waited eight years, and Yakye Axa and Xákmok Kásek longer. Land and environmental defenders and campesino leaders face **criminalisation, eviction, and violence**; the 2012 Curuguaty killings, in which campesinos and police died during an eviction and campesino leaders were then prosecuted, cast a long shadow. Chaco deforestation is among the fastest on Earth, environmental enforcement is weak, and Paraguay has **not ratified the Escazú Agreement**. Where this tilt bites, the domestic process gives less than it should — but real levers still reach past it.

### What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

**The Inter-American system reaches above the State.** The Commission and the Court sit outside Paraguay's land politics and local courts, and their rulings bind the State — the lever that has ordered ancestral land returned again and again, whatever the domestic resistance.

**Precautionary measures can act fast.** For imminent harm, the Commission can call on the State to halt clearing or eviction quickly — a brake that does not wait for the years a full case takes.

**The constitutional guarantee endures.** The communal-land right is written into the Constitution, and a documented, well-pressed claim, backed by the Court's jurisprudence, is a barrier that cannot simply be wished away.

**The record and the community endure.** What you document — above all the ancestral occupation and the history of exhausted remedies — powers the case over years, and an organised community outlasts a State betting on its exhaustion, as Sawhoyamaxa did.

**The buyers and the world are reachable.** Export markets and international attention reach a proponent and a



government where the local system does not.

## The Honest Frame

So the honest frame for Paraguay is real but demanding, and slow. The Inter-American system, the constitutional land guarantee, consulta, the amparo, and a deep land-struggle tradition give a community genuine — in places uniquely — power, as Sawhoyamaxa proved. But land inequality and agribusiness power are immense, the State hides behind private titles, enforcement of even binding rulings drags for years, and defenders face grave danger. So diagnose the tilt honestly: build the ancestral claim and the Inter-American case, seek precautionary measures for urgent harm, reach the buyers and the public, and protect your people first; do not rely on the local courts alone; treat a win as something to be enforced and defended, not banked — Sawhoyamaxa's 2006 ruling became real land only in 2014, and only because the community never let go; and think in terms of the long haul, in which delay, exposure, precautionary brakes, and hard-won rulings accumulate into victory. Against agribusiness and a stalling State, that patient, stacked pressure is often what winning looks like — and it is real.

## WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Sometimes a project advances not despite the evidence but because someone is being improperly favoured, pressured, or paid. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

### How to Tell

Look for the signatures of capture. **Land titled or re-titled irregularly** to a powerful owner over an existing Indigenous or campesino claim; a **claim left to gather dust for decades** while clearing proceeds; an **environmental licence granted on a study that ignores an obvious harm**; a **consulta staged** as a formality; **local courts and officials consistently siding with agribusiness**; **evictions carried out violently** and then blamed on the community; and the **criminalisation of a movement's leaders** on doubtful charges — all point the same way. In a country with extreme land inequality, the line between lawful advantage and capture is often crossed quietly in the land registry and the licence file. One anomaly may be error; a pattern is capture.

### Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. **Local courts, land officials, a licensing decision, and even national politics** can be captured by agribusiness money and power. But the system has bodies harder to reach that a captured domestic arrangement cannot control: above all the **Inter-American Commission and Court**, which sit entirely outside Paraguay's politics; the **Defensoría del Pueblo**; the international human-rights organisations; the **export buyers and financiers** with their own compliance standards; and a free national and international press. Undue influence thrives on staying local and quiet; your task is to lift the matter out of the captured node and into the light — and, decisively in Paraguay, up to the Inter-American system and out to the world.

### What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the irregular title, the buried claim, the whitewashed study, the staged consulta, the violent eviction — and take it, with evidence, to the bodies beyond local reach: the Inter-American Commission, the Defensoría, the human-rights organisations, the buyers, and the press. Pair the referral with the land claim, the amparo, and the precautionary-measures request, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: an Inter-American case or international coverage creates a record the State must answer, and an irregular title or a buried claim, once documented, becomes the heart of the human-rights case. And protect yourself above all — this is life-and-death in parts of rural Paraguay: get security and legal advice, coordinate with human-rights organisations and the Defensoría, keep the work collective and visible, and never carry it alone.

## INTEGRATION & TIMELINE

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The five steps win when they run together. Here is how they fit across the life of a fight — which in Paraguay is often

measured in years.

## Early (Weeks 0-8): Claim, Connect, and Document

Pin down the project, the land, and the stage (Step 1), and — where an Indigenous community is affected — support its leadership and **file or renew the land claim** at once (Step 3, Step 4). Begin the file — the titles, the claim history, the licence and study, the ancestral occupation, the satellite imagery (Step 2 and What to Gather). And move fast on what will not wait: **connect with human-rights counsel, object to the environmental licence and demand consulta**, and, if harm is imminent, **seek precautionary measures** from the Inter-American Commission. Put protection for exposed leaders in place. This early phase is cheap, and it sets up everything else — including the record of exhausted remedies the Inter-American case will need.

## Middle (Months 2-48): Escalate on Every Front

Grow the movement and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate as the facts warrant — press the **land claim** toward titling or **congressional expropriation**, run the **amparo** and the **consulta** claim, and build the **Inter-American petition** through the Commission toward the Court (Step 4). Refer any corruption to the Commission, the Defensoría, and the press. Press the **buyers and financiers** (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others. Do the cheap, time-sensitive things first, because a lapsed licence objection or a missed chance to document clearing cannot be recovered. And sequence the moves with your lawyers and the community so they land when they bite hardest — the licence objection while the window is open, the precautionary-measures request the moment harm turns imminent, the Inter-American petition built on a full record of exhausted remedies — because in Paraguay the fight is a marathon, and the campaigns that win are the ones that keep something moving on every front while the slowest lever, the binding ruling, grinds toward the finish.

## Later (Months 6 to years): Sustain, Win the Line, Enforce It, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **land claim titled or expropriated back**, a **binding Inter-American ruling**, a **licence blocked**, a **clearing stopped**, a **buyer walking away** — and then **fight to enforce the win**, because in Paraguay a ruling on paper is not yet land on the ground. And judge success honestly. Sometimes it is an outright restitution — land returned, as at Sawhoyamaxa. More often, and for a long time, it is a project **delayed, exposed, conditioned, or braked by precautionary measures while the larger case grinds on**. That is not a lesser victory. It is what winning usually looks like here — and Sawhoyamaxa proves it can, in the end, become the land itself.

## The Shape of a Campaign

|              |                                                                                                                  |
|--------------|------------------------------------------------------------------------------------------------------------------|
| WEEKS 0-8    | Identify   File the land claim   Reach counsel   Document   Object to licence   Precautionary measures if urgent |
| MONTHS 2-48  | Grow the movement   Arguments   Claim + amparo + consulta + Inter-American case   Buyers   Media                 |
| MONTHS/YEARS | Sustain   Protect people   Win the ruling / expropriation   Enforce it on the ground   Redefine the win          |

## FINAL ASSESSMENT

Paraguay gives communities a genuinely powerful — and, in places, unique — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. When the domestic system fails, a community can reach **above the State** to the **Inter-American human-rights system** — seeking **precautionary measures** to halt urgent harm, and a **binding Court** that has ordered ancestral land returned in Yakye Axa, Sawhoyamaxa, and Xákmok Kásek. At home, the **Constitution guarantees communal land**, INDI and Congress can title or **expropriate** it back, **consulta previa** protects Indigenous decision-making, and the **amparo** offers a fast injunction. The **environmental licence** can be challenged, the **buyers and financiers** in the soy and beef chains can be reached, and a **deep land-struggle tradition** sustains the fight.

The limits are just as real. Land inequality is among the world's most extreme; agribusiness power is immense; the State hides behind private titles; enforcement of even binding rulings takes years; defenders face criminalisation and violence; and Escazú is unratified. No guide should pretend otherwise. Sawhoyamaxa's binding 2006 judgment became real land only in 2014 — eight years of stalling that ended only because the community never let go; that endurance is the condition of this fight, not its exception.

So the realistic promise is this: **file and press the ancestral-land claim, demand consulta, object to the licence, and — when the domestic system fails — take the case above it to the Inter-American Commission and Court, seeking precautionary measures for urgent harm, while you reach the buyers, mobilise the public, and protect your people first — and run all of it together, over the long haul, following the affected community's lead.** Do that, and even against agribusiness and a stalling State you can force delay, exposure, an urgent brake, a licence blocked, a binding ruling, and — in the end, as Sawhoyamaxa showed — the land itself, returned. Do it as the Enxet of Sawhoyamaxa did, holding on for over twenty years until an international court and their own Congress were made to honour their right, and you can win a victory that protects not only your own land but sets a precedent others across Paraguay will stand on.

A last word on endurance. These fights are won in years — often more than a decade — not weeks, and the proponent and the State are counting on your exhaustion, and, in Paraguay, sometimes on your fear. Their advantage is money, land, and patience; yours is legitimacy, the Constitution's guarantee of your land, an international court that has ruled for communities like yours before, and the plain fact that you are defending your home and your survival while they are merely pursuing a return. Play to that. Keep the file, keep the claim, keep the community, keep the record and the coverage alive, protect your people, and treat every delay, every precautionary measure, every ruling, every buyer that walks, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Sawhoyamaxa proves they work: a community with almost nothing recovered 14,400 hectares of stolen ancestral land, because it documented its right, reached above a failing system to an international court, re-occupied its own territory, and held the line for more than two decades. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — stolen land returned by an act of Congress, a forest defended, a people brought home to ground an international court said was theirs. The tools are here, and the strongest of them — an international court that binds the State — does not depend on a community's wealth or on the goodwill of the powerful at home; what has ever been missing in the fights that were lost was not the law but the endurance, the organisation, and the protection to use it. So can yours.